

HOUSE No. 889

The Commonwealth of Massachusetts

PRESENTED BY:

Jennifer Balinsky Armini

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to boat wrap recycling.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>1/16/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>5/19/2025</i>

HOUSE No. 889

By Representative Armini of Marblehead, a petition (accompanied by bill, House, No. 889) of Jennifer Balinsky Armini relative to boat wrap recycling. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3919 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to boat wrap recycling.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 21A of the General Laws is hereby amended by adding the
2 following section:-

3 Section 29. (a) For the purposes of this section the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Boat”, any watercraft used or capable of being used as a means of transportation on
6 water.

7 “Commissioner”, the commissioner of the department of environmental protection.

8 “Department”, the department of environmental protection.

9 “Shrink-wrap”, any plastic wrapping used to winterize and protect boats.

(b) The commissioner shall establish a recycling program in the commonwealth for the purpose of recycling boat shrink-wrap scraps or covers. The recycling program shall require the recycling of all shrink-wrap scraps or covers used for boats. The wrap shall be free of all non shrink-wrap material including, but not limited to: plastic straps, vents, zippers, buckles and any additional strapping used for shrink-wrapping a boat.

(c) All marinas, boatyards, yacht clubs or other marine-related businesses in the commonwealth shall have collection sites for the recycling of boat shrink-wrap.

(d) All municipal recycling centers in the commonwealth shall collect or have collection sites available for the recycling of boat shrink-wrap. Municipal recycling centers shall receive funding for the boat shrink-wrap recycling program from the Boat Shrink-Wrap Recycling Fund pursuant to section 2BBBBBB of chapter 29.

(e) The department may provide assistance to marinas, boatyards, yacht clubs or other marine-related businesses in the preparation of grant applications for the boat shrink-wrap recycling program.

(f) The department shall adopt rules and regulations as may be necessary for the implementation of this section.

SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting after section 2AAAAAA the following section:-

Section 2BBBBBB. (a) There shall be established and set upon the books of the commonwealth a separate fund to be known as the Boat Shrink-Wrap Recycling Fund. The fund shall be administered by the commissioner of the department of environmental protection.

(b) The fund shall be credited with: (i) revenue from appropriations and other money authorized by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources such as gifts, grants and donations; (iii) funds collected from 10 per cent surcharge on all boat registration, title and permit fees in section 40 of chapter 90B; and (iv) interest earned on money in the fund. The fund shall not be subject to section 5C of chapter 29 and shall be subject to appropriation.

(c) The fund shall be used to provide financial assistance to all municipal recycling centers in the commonwealth for the collection or having collection sites available for the recycling of boat shrink-wrap pursuant to subsection (d) of section 29 of chapter 21A.

(d) The department of environmental protection shall establish rules and regulations that are necessary to implement this section.

SECTION 3. Chapter 90B of the General Laws is hereby amended by adding the following section:-

Section 40. There shall be a 10 per cent surcharge on all boat registration, title and permit fees collected by the division. The surcharge shall be deposited into the Boat Shrink-Wrap Recycling Fund established by section 2BBBBBB of chapter 29.